

INFORMAL COMPLAINTS

**Small Claim Form for Informal Adjudication
And Information Checklist**

RECEIVED

06 NOV 29 PH 2: 23

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

Federal Maritime Commission, Washington, D.C.

Docket No. 1883(1)

Frank J. Kuzela
(Claimant)

VS.

Maersk Sealand Cargo Claims - Mr. John Yu.
(Respondent)

I. The claimant is Frank J. Kuzela, Mr. Kuzela resides at 275 Hawthorne Lane N.E., Palm Bay, Fl. 32907.

II. The respondent named above is a shipping company in the State of New Jersey. The company is located at Maersk Sealand, Giraldo Farms Madison Ave., P.O. Box 880, Madison, New Jersey 07940-0880. Mr. John Yu, is the claims adjustor with Maersk Sealand. Maersk Sealand accepted household goods from United States to send our goods internationally by ocean. They send goods to the requested foreign destination. Our goods were shipped on Sept. 10, 2004, from Zlin, Czech Republic to the United States.

III. Maersk Sealand accepted our personal household goods for ocean shipment and failed to deliver said goods in proper order to the final destination, at a storage: EZ Way Storage, 888 Palm Bay Road, Palm Bay, Florida. The evidence of damage was submitted to the Federal Maritime Commission at an earlier date showing from the driver's report that 2 boxes of National Geographic magazines, as well as, a few books in the Czech language were destroyed, due to a hole located on the top of Container No. AMFU8597787 which caused water damage and mildew. As pointed out earlier, separate documents were sent to the Maritime Commission that these books are a valuable collection. Also, it was pointed out to Mr. John Yu, of Maersk Sealand that we needed to replace these books from National Geographic. The cost amounted to \$ 4147.80.

IV. Maersk Sealand has violated section 10(d) (1) of the Shipping Act of 1984 by failing to establish and enforce just and reasonable practices related practices related to the handling, storing and delivering of personal household goods.

V. A claim was filed with Maersk Sealand on October 27, 2005. I lost \$ 4147.80 worth of goods and have never received any reimbursement from Maersk Sealand for damaged items. This does not include: out of pocket expenses for long distance telephone calls, faxes and postage, which amount to \$ 200.00. The insurance was included with the shipping cost and no extra separate insurance was needed as stated by Mr. Duda of Maersk Sealand at their Prague Office in the Czech Republic.

VI. The undersigned authorizes the Settlement Officer to determine the above stated claim.

Supporting documents have been submitted to the Federal Maritime Commission at an earlier date.

Date November 27, 2006

(Claimant's Signature) Frank J. Kuzela

(Claimant's Address) Frank J. Kuzela

Mailing Address: P. O. Box 110896

Palm Bay, Florida 32911-0896

Residential Address: Frank J. Kuzela

275 Hawthorne Lane N.E.

Palm Bay, Florida 32907

ORIGINAL

Exhibit No. 1 to Subpart S [Sec. 502.304(a)]--

**Small Claim Form for Informal Adjudication
and Information Checklist**

Federal Maritime Commission, Washington, DC.

Informal Docket No. 1883(1)

FRANK J. KLIZELA

(Claimant)

vs.

MAERSK SEALAND

(Respondent)

I. The claimant is [state in this paragraph whether claimant is an association, corporation, firm or partnership, and if a firm or partnership, the names of the individuals composing the same. State the nature and principal place of business.]

II. The respondent named above is [state in this paragraph whether respondent is an association, corporation, firm or partnership, and if a firm or partnership, the names of the individuals composing the same. State the nature and principal place of business.]

III. That [state in this and subsequent paragraphs to be lettered A, B, etc., the matters that gave rise to the claim. Name specifically each rate, charge, classification, regulation or practice which is challenged. Refer to tariffs, tariff items or rules, or agreement numbers, if known. If claim is based on the fact that a firm is a common carrier, state where it is engaged in transportation by water and which statute(s) it is subject to under the jurisdiction of the Federal Maritime Commission].

IV. If claim is for overcharges, state commodity, weight and cube, origin, destination, bill of lading description, bill of lading number and date, rate and/or charges assessed, date of delivery, date of payment, by whom paid, rate or charge claimed to be correct and amount claimed as overcharges. [Specify tariff item for rate or charge claimed to be proper].

V. State section of statute claimed to have been violated. (Not required if claim is for overcharges).

VI. State how claimant was injured and amount of damages requested.

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary

Commission review.

Attach memorandum or brief in support of claim. Also attach bill of lading, copies of correspondence or other documents in support of claim.

(Date) OCTOBER 19, 2006.

(Claimant's signature)

Frank J. Kuzla

MAILING ADDRESS:

(Claimant's address)

P.O. BOX 110896, PALM BAY FL. 32911-0896.

HOME ADDRESS: 275 HAWTHORNE LANE NE, PALM BAY FL. 32907

(Signature of agent or attorney)

(Agent's or attorney's address)

VERIFICATION

State of Florida, County of Brevard, ss: _____,
being first duly sworn on oath deposes and says that he or she is _____

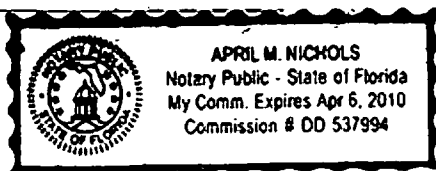
The claimant [or if a firm, association, or corporation, state the capacity of the affiant] and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of FL, County of Brevard this 19 day of October, 2006 (Seal)

April M. Nichols

(Notary Public)

My Commission expires, _____



P.O. Box 110896

Palm Bay

Florida 32911-0896

October 19 '2006

RECEIVED
PALM BAY, FLORIDA
OCTOBER 25, 2006

Dear Ms Zoraya De La Cruz:

DATE 10/25/06 10038024011

AMOUNT \$67.00

Enclosed are the shipping documents you requested for our claim against 'Maersk Sealand'.

We wish to state that only 'Maersk Sealand' caused damage to our goods because of the 40 ft H.C. container # AMFU8597787 having a hole on the roof during shipping from the Czech Republic to Miami Florida U.S.A. That hole was discovered on that container when it reached its destination, here, at Palm Bay, Florida.

Let it be known that, the container had no hole when we were loading our goods of personal items in the Czech Republic.

We were informed by Mr. DUDA of 'Maersk Sealand' in Prague, Czech Republic, that the insurance was included with the shipping price from the Czech Republic to Miami Florida U.S.A.

"I declare under penalty of perjury that
the foregoing is true and correct."

Sincerely,

Frank J. Kuzela
FRANK J. KUZELA.

FAX TO: → 202 275 0059

P.O. Box 110896
Palm Bay
Florida 32911-0896
June 19, 2006.

Dear Mrs. Zoraya:

We are so very angry and upset with 'Maerck Sealand' and also very shocked and disappointed with everyone, we have talked to by phone; all the different agencies, to help us, concerning how we have been treated by the shipping company... 'Maerck Sealand'!

There has been no help of any kind whatsoever from any government agency which we felt very strongly would get results, good results for us as our last resort. This is so sad!

It is so sad to know that out there, there is not even one person who can do anything for us, out of all these agencies we phoned. Why, I ask?! There is not even one person who can stand up to 'Maerck Sealand' and tell them that they are in the wrong and that they should pay us for all the damages done to our collection of National Geographic Society books and Geck Language books, done due to the large hole on the roof in their shipping 40'HC

container, which was discovered when the container door was opened at the storage facility, here in Palm Bay.

Our collection of these books have been in our family for many years. All these book got very wet due to that large hole on the roof of the container.

Maersk Sealand refuses to see and admit their mistake deliberately to avoid paying us to cover the cost with tax, the above claim.

Furthermore Maersk Sealand took their time to resolve this problem. We pointed to them with our phone calls and correspondence that they could verify our claim with the necessary parties especially with National Geographic Society the cost to replace the damage books with covers.

We have refused the amount of US. \$1,000.00 dollars, Maersk Sealand is offering us. As you can see the amount offered does not cover the cost in replace the damage books, shipping and handling and tax.

We have found out that Maersk Sealand own and operates the equipment in the port of Miami when it comes to unloading and loading goods coming on and off the freighters.

3) Our concern is also, that the equipment operators at the port of Miami were negligent when handling the containers, especially the one container with the damage books.

We certainly did not appreciate Maersk Sealand in making excuses that we had no evidence to seek a claim with them. Correspondence with Maersk Sealand will explain this to you.

We know that only Maersk Sealand destroyed our books of value and they should pay us the full amount for damages including shipping and handling and tax to replace this valuable collection of books with covers, because of the damage container that arrived to its final destination.

Because of all this inconvenience done to us we are looking forward to hear from you with a favorable reply. — Good money was paid for shipping —

We thank you Ms Foraya for your time and attention. Please help us, kindly!

Sincerely,

Annah Kuzela and Frank J. Kuzela
ANNA M. KUZELA and FRANK J. KUZELA

P.S.

We are faxing this all to you from the store...
STAPLES, here in Palm Bay since we do not
have a fax machine. — Their fax number is...
(321) 726-0952

Our mailing address is:—

P.O. Box 110896
Palm Bay
Florida 32911-0896

Our telephone number is:—

(321) 728-1372

Please leave a message should you phone — we
shall return your call, if not home.

Thank You!

Total of pages — 23. faxed to you, Ms Foraya.

To → National Geographic Society.
P.O. Box 60001
Tampa
Florida 33660.

813-354-3467

from,

FRANK J. KUZELA.
P.O. Box 110896
PALM BAY
FLORIDA 32911-0896

November 6th 2004.

Dear Sir:

Enclosed you will find a list of National Geographic Society Magazines that got destroyed due to water damage in a shipping container.

We would like to replace these magazines.

Would you kindly let us know how much they would cost, including their ship covers, plus shipping and handling charges.

<u>YEARS</u>	<u>MONTHS</u>	<u>YEARS</u>	<u>MONTHS</u>
1951 -	July to December	1965 -	January to December
1952 → 1952 -	January to December	1966 -	January to December
1954 -	January to December	1971 -	January to December
1955 -	January to December	1974 -	January to December
1956 -	January to December	1975 -	January to December
1957 -	January to December	1976 -	January to December
1958 -	January to December	1977 -	January to December
1959 -	January to December	1978 -	January to December
1960 -	January to December	1979 -	January to December
1961 -	January to December	1980 -	January to December
1962 -	July to December		
1963 -	July to December		
1964 -	January to December		

Thank You
Sincerely,
Frank J. Kuzela

To → National Geographic Society.
P.O. Box 60001
Tampa
Florida 33660.

813-354-3467

From,

FRANK J. KUZELA.
P.O. Box 110896
PALM BAY
FLORIDA 32911-0896

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1951 -	July to December	1965 -	January to December
1952 -	January to December	1966 -	January to December
1954 -	January to December	1971 -	January to December
1955 -	January to December	1974 -	January to December
1956 -	January to December	1975 -	January to December
1957 -	January to December	1976 -	January to December
1958 -	January to December	1977 -	January to December
1959 -	January to December	1978 -	January to December
1960 -	January to December	1979 -	January to December
1961 -	January to December	1980 -	January to December
1962 -	July to December		
1963 -	July to December		
1964 -	January to December		

Thank You
Sincerely,
Frank J. Kuzela

To → National Geographic Society.
P.O. Box 60001
Tampa
Florida 33660.

813-354-3467

from

FRANK J. KUZELA.
P.O. Box 110896
PALM BAY
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1952	January to December	1966	January to December
1954	January to December	1971	January to December
1955	January to December	1974	January to December
1956	January to December	1975	January to December
1957	January to December	1976	January to December
1958	January to December	1977	January to December
1959	January to December	1978	January to December
1960	January to December	1979	January to December
1961	January to December	1980	January to December
1962	July to December		
1963	July to December		
1964	January to December		

Thank You
Sincerely,
Frank J. Kuzela

FRANK J. KUZELA.
KUZELA FAMILY

LIST OF PERSONAL ITEMS.

CONTAINER #AMF48597787

305 Cases Containing large and small size boxes
of Personal Belongings.

Glass ware
Plate Settings
Dishes
Pots and Pans
Kitchen Items
Souvenir Items
Bed Linen
Pillows
Blankets
Sheets
House hold items
Curtains
Curtain rods

Ceramic figurines
Hummel antiques figurines
Hummel figurines collections
Personal clothing
Shoes
Boots
Winter coats
Antique plates collections
Antique glass collections
Dinner collection

Crystal glass ware and lamp
Family Photograph Albums
Garden figurines
Czech Language Books
Old Czech Language Books
English Language Books
Collection of National Geographic
Society Magazine Book with
Covers,
Video movie and nature tapes
Cassette tapes of music
Family movies
Cameras

Out door Nativity sets
Christmas items for
Garden
Silt flowers
Long playing music
records + 45 & 7
music records.



MAERSK SEALAND

Cargo Claims
Girakda Farms Madison Avenue
P.O. Box 880
Madison, NJ 07940-0880
973-514-5233
973-514-5165 (fax)

December 14, 2005

TRANSMISSION BY MAIL:

Attention: **Frank Kuzela**
 P.O. Box 110896
 Palm Beach, FL 32911-0897

Re: Vessel/Voyage: **Oluf Maersk/ 0413**
 Bill of lading #: **PRHL12276**
 Commodity: **Personal Goods**
 Amount: **\$4,147.80 usd**
 Your Ref.: **Letter of Claim, October 27, 2005**
 Our Ref.: **41420/JCY**

Dear Mr. Kuzela :

We refer to the captioned claim and confirm our investigation into the alleged loss and/or damage to the subject shipment has been completed.

Kindly advise if you will accept the vessel's offer in the amount of **\$1,000.00 usd** as full and final settlement in your claim, by signing this letter and returning it by fax to the number below.

Nighthawk Enterprises, Inc shows evidence that "two boxes wet + destroyed old National Geographic." Due to package limitation, \$500.00 usd will be set for each of the boxes that were affected during the transit.

The above offer is made without prejudice and is not to be considered an admission of liability nor a waiver of any rights available to the vessel at law or under the bill of lading or otherwise.

The above offer will be kept open for 30 days. On January 14, 2006, this offer will be rescinded without further notice. In the event of non-response, your claim will be considered in-active, causing closure of the claim file, and regarded as formally declined. Please take note of the statute of limitations as provided in clause 9 of our Bill of Lading. Please be guided accordingly.

Sincerely,
MAERSK SEALAND

John Yu
Claims Adjuster
Risk Management & Claims Department



NIGHTHAWK ENTERPRISES, INC.

Heavy Hauling • Local Transporting
All payment must be mailed to
P.O. Box 520506 / Miami, FL 33152-0506
(305) 888-2268 • Fax (305) 888-9801

253273

10201213

Date 10/27/09

MC - 270847

BILL OF LADING

Consignor: Wm. L. Macdonald Miami FL
(NAME) (ADDRESS) (CITY AND STATE)

Consignee: E. J. Macdonald 184 Robin Road B210 Coral Gables FL

Shipper Instructions: _____

Received subject to the classification and tariffs in effect on the date of issue of this B/L

No. of Pkgs.	Description Of Articles	Unit Number	Empty or Seal No.	Subject to Section 7 of conditions of applicable bill of lading, if this shipment is to be delivered to the consignee without recourse on the consignor, the consignor shall sign the following statement: The carrier shall not make delivery of this shipment without payment of freight and all other lawful charges.
	40' Van Trailer			
	40' Flat Bed			
	40' Container <u>AMFU</u>	<u>6597787</u>	<u>FULL</u>	
	40' Bogie <u>TL x 2</u>	<u>413441</u>		
	20' Container			
	20' Bogie			(SIGNATURE OF CONSIGNOR) RESPONSIBILITY FOR LOSS OR DAMAGE TO EQUIPMENT Consignee shall be fully responsible to Carrier for any loss by theft, mysterious disappearance or any other failure to return the equipment or damage to equipment (including chassis and container(s) or trailer described in this bill of lading) without regard to cause while this equipment is in the possession of the consignee. Damages for the loss, theft, mysterious disappearance or other failure to return the equipment or any part of it shall be the replacement value of the equipment or carrier's obligation to the owner, whichever is lower. Damages for the repair of the equipment or for the removal of any lien placed on the equipment shall be the carrier's or owner's actual cost of repair or for the cost of clearing the lien.
	<u>Hole on top of 2 Bogs, not at</u>	<u>of TRAILER</u>	<u>+ destroyed</u>	

TIME: Arrived Shipper old national geographic Bldg 12:00 Left Shipper _____ Arrived Consignee 148 Left Consignee _____

WAITING TIME (@ \$ /hour) AT Shipper ☐ Consignee ☐ Hrs. _____ Mins. _____

Authorized By: _____ Title _____

Transportation		Weight Ticket		Detention		Other Charges		Declared Value Charge		Total Charges
Rate	Charge	Rate	Charge	Rate	Charge	Rate	Charge	Rate	Charge	
\$ _____		\$ per		_____ Hours						
each way	\$ _____	Ticket	\$ _____	@ \$ /Hr.	\$ _____		\$ _____		\$ _____	\$ _____

DECLARED VALUE

Unless greater value is declared and written in the place provided prior to tender of the shipments to carrier and additional transportation charge of 50 cents (.50¢ U.S.) per \$100.00 or fraction thereof of the declared value is paid on the property in the above described trailer or container the shipment moves at a declared value of 50 cents (.50¢ U.S.) per pound per article or actual value. Whichever's is less. The declared value is no more than \$ _____ (if no amount entered the declared value is 50 cents per pound).

SHIPPERS CERTIFICATE

I do certify that the above described weighs _____ and consists of _____

AS USED HEREIN THE WORD OWNER REFERS TO THE BAILOR(S) FROM WHOM CARRIER RECEIVED THE EQUIPMENT DESCRIBED IN THIS BILL OF LADING.

Shippers Signature _____

RESPONSIBILITY FOR PER DIEM, DEMURRAGE OR DETENTION CHARGES	IN BOND AND HAZARDOUS MATERIAL SHIPMENTS	SPECIAL CONDITIONS, IMPROPER LOADING, OVERWEIGHT & ADVANCE CHARGES
Consignee, from the time of acceptance of this equipment (including both chassis and container(s) or trailer described in the bill of lading) from Carrier, shall be responsible to Carrier for all per diem, demurrage and/or detention charges assessed by whatever source until this equipment is returned to Carrier or the owner of the equipment. In the event the equipment is lost, stolen or destroyed while in the possession of the consignee said consignee shall be responsible for all per diem, demurrage and/or detention charges assessed until the date of the consignee has paid the full amount assessed by the owner(s) for the lost, stolen or destroyed equipment. Consignee's bailment shall not terminate until it has received a written receipt for the equipment from Carrier or owner.	Shipper/Consignor/Consignee must advise Carrier if the shipment is an in bond movement or hazardous material shipment and must provide necessary documents, including shipping papers, and information for Carrier to properly perform under the applicable regulations and this bill of lading. Shipper/Consignor/Consignee must also furnish Carrier with proper shipping papers and correctly packaged and loaded commodities and/or all necessary documents needed for Carrier to comply with U.S. Custom Service and State and Federal Highway Administration Department of Transportation regulations applicable to this shipment and its contents. Failure to comply with these provisions makes Shipper/Consignor/Consignee responsible to Carrier for any fines, penalties, liquidated damages or other assessments together with Carrier's costs, including attorney's fees, incurred as a result of Shipper's/Consignor's/Consignee's failure to comply with these provisions.	Unless otherwise stated in writing by Carrier this shipment moves shipper's load, weight and count and the terms and conditions of this bill of lading and the tariff in effect on the date of issue of this bill of lading cannot be altered, amended or changed unless said changes are negotiated and approved by an officer of Carrier prior to the issuance of this bill of lading and such change reduced to writing and signed by an officer for Carrier prior to the issuance of this bill of lading. Consignor/Consignee shall be responsible to Carrier and the public for all damages to persons or property or the equipment and its contents, if loaded, for improper loading, including overweight and failure to properly secure or distribute the contents of the equipment. Shipper/Consignor/Consignee shall be responsible to Carrier for all bonds, fines, penalties, liquidated damages, judgments, costs of investigating and defending, including attorney's fees, and judgments incurred from any source, governmental or private, by reason of the violation of this clause. Any bonds, fines, penalties or liquidated damages assessed by any governmental authority are advance charges due under this bill of lading and are transportation charges to be paid prior to the delivery of the equipment and its contents, if loaded, to the Consignee.

CONSIGNEE _____ CARRIER: 253273

RECEIVED BY John J. Macdonald DRIVER _____

PAYMENT OF CHARGES

All charges must be paid within 7 days except C.O.D. and other advance charges which are due on the tender of this shipment. Unpaid balances due on this bill of lading for transportation charges, per diem, demurrage, detention charges, or for the loss or damage to equipment shall bear interest at the rate of 1.5% per month. If carrier is required to file a law suit to collect transportation or any other applicable costs, damages or charges due on or under this bill of lading, consignor/consignee or shipper shall be liable for the costs of collection including Carrier's attorney's fees and costs.



MAERSK SEALAND

Export Invoice

AP MOLLER - MAERSK A/S
Esplanaden 50
DK-1098 Copenhagen
Denmark
VAT: DK53139655

Invoice Number: PR10060869-PRHL12276
Invoice Date: 27-SEP-04
Due Date: 25-SEP-04
B/L Number: PRHL12276

Payer:
FRANK KUZELA
PROVODOV 233
763 45 BREZUVKY
CZECH REPUBLIC

Customer No.: 14800006323
Your VAT No.:
Your reference:

Our contact/phone no.:
Customer Service / 257182393

Place of receipt:
ZILIN
Sailing date:
25-SEP-04

Place of delivery:
MIAMI
Vessel name:
OLUF MAERSK

Main vessel name:
OLUF MAERSK
Voyage:
0413

Item description:	Qty:	UOM:	Curr	Unit price:	USD
BASE FREIGHT	1	40' HC CON	USD	3,250.00	3,250.00
BASE FREIGHT	1	40' HC CON	USD	3,250.00	3,250.00
INL EXPORT	2	40' HC (S	EUR	770.00	1,863.40
DESTINATION THC	2	40' HC (S	USD	500.00	1,000.00
ORIGIN THC	2	40' HC (S	EUR	156.00	377.52
C.A.F.	1	SURCH FRE	USD	5.00	325.00
DEPOT SERVICE CHARGE	2	40' HC (S	EUR	35.00	84.70
ORIGIN DOCUMENTATION & ADM. F	1	SURCH LUM	EUR	50.00	60.50
US CARGO DECLARATION	1	SURCH LUM	USD	25.00	25.00

Total due: 10,236.12

Containers :
AMFU8597787 (40 ' HIGH)
CP1U5558847 (40 ' HIGH)

Bank charges on account of remittant. / Bankovni poplatky k tizi platce.
Payment ref.: By payment/bank transfer please include invoice no. PR10060869-PRHL12276
VAT exempt in accordance with Art. 28b(C) (3), Art 28b(D), Art 14 (1) (i) and Art 15 (13)
of the Sixth EU VAT Directive

Bank: CITIBANK Prague, Evropska 178, Praha 6, Czech Republic
Account: USD 2035010208/2600 (swift: CITI CZPX)
IBAN: CZ33 2600 0000 0020 3501 0208

MAERSK AGENCY S.R.O.

Notes:

MAERSK AGENCY S.R.O., Na Belidle 21, 150 00 Praha 5, Czech Republic
zapsana u Krajskeho obchodniho soudu v Praze, oddil C, vložka 3101
Acting as agents for and on behalf of AP MOLLER - MAERSK A/S,
trading under the name MAERSK SEALAND, Esplanaden 50, DK-1098
Copenhagen-K Denmark. VAT No. DK-53139655

MAERSK AGENCY, s.r.o., obchodne zastupenie Slovenska republika
Vlkova 35, 811 04 Bratislava, Slovak Republic



MAERSK SEALAND

**NON-NEGOTIABLE
WAYBILL**

1. **Yayoi no**

PRKL12276

FRANCO KUEBLA
PROVODOV 233
763 45 BREZOVKY
CZECH REPUBLIC

PRHL12276

Experiments

adding the law & jurisdiction
cases, of the current statute
from the corner, its agents and
its own work should be a good idea. By the way, the legal amendments (mutatis
mutandis)

In the 1992 agreement, it is stated: "The Singapore to Sumatra to be used under this contract by STS from 1 January 1992 to 31 October 1992, then 30 January 1993 and as long as it is available for use by STS up to 31 June 1993, the time before delivery of the goods under the contract by the carrier is to be taken into account."

There is no question that the signature of the author is an indispensable condition of the validity of the contract of an agent, a reasonable proof of authorship is a condition of this as well. The former shall be under no liability whatever for the material damage caused by the latter's negligence.

Source: <http://www.fishbase.org>

Figure 28. Page 28, Amplified 6' 10" tower document used as Mulholland Vantage II

Z.T.Y.N

Place or Delivery Application only, when document used as Muhammadali Waybill

OLUF MAERSK

Page no
0413

Port of Loading
ROTTERDAM

Port of Discharge
MIAMI, FL

PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE

Kind of packages, description of goods, Marks and Numbers	Quantity	Comments (if any)
AMFU8597787	1	40 MC
40/HIGH 9'6		SAID TO CONTAIN
ML-CZ0012385		305 CASES
78779		HOUSEHOLDS GOODS
		CY / CY

Gross Weight	KGS
7350.00	

Keywords:

CPIU5558847 1 40 MC
40/HIGH 9'6 SAID TO CONTAIN
ML-CE0012384 214 CASES
47885 HOUSEHOLDS GOODS
CY / CY
SHIPPER'S LOAD,
AND COUNT
FREIGHT PREPAID

KGS
7350.00

© 2000 by Springer International AG, P.O. Box 17, CH-8590, Basel, Switzerland Printed in Switzerland		
Author's address:	Editor:	
Author's e-mail:	Editor's e-mail:	

— 171 —

TSW

Printed

Collect

1. *Journal of the American Medical Association*, 1997; 278: 1023-1028.

FRANK

CONTAINER(S)

SEP 25 2004

1960-1961, 1962-1963, 1964-1965, 1966-1967, 1968-1969, 1970-1971, 1972-1973, 1974-1975, 1976-1977, 1978-1979, 1980-1981, 1982-1983, 1984-1985, 1986-1987, 1988-1989, 1990-1991, 1992-1993, 1994-1995, 1996-1997, 1998-1999, 2000-2001, 2002-2003, 2004-2005, 2006-2007, 2008-2009, 2010-2011, 2012-2013, 2014-2015, 2016-2017, 2018-2019, 2020-2021, 2022-2023, 2024-2025, 2026-2027, 2028-2029, 2030-2031, 2032-2033, 2034-2035, 2036-2037, 2038-2039, 2040-2041, 2042-2043, 2044-2045, 2046-2047, 2048-2049, 2050-2051, 2052-2053, 2054-2055, 2056-2057, 2058-2059, 2060-2061, 2062-2063, 2064-2065, 2066-2067, 2068-2069, 2070-2071, 2072-2073, 2074-2075, 2076-2077, 2078-2079, 2080-2081, 2082-2083, 2084-2085, 2086-2087, 2088-2089, 2090-2091, 2092-2093, 2094-2095, 2096-2097, 2098-2099, 2100-2101, 2102-2103, 2104-2105, 2106-2107, 2108-2109, 2110-2111, 2112-2113, 2114-2115, 2116-2117, 2118-2119, 2120-2121, 2122-2123, 2124-2125, 2126-2127, 2128-2129, 2130-2131, 2132-2133, 2134-2135, 2136-2137, 2138-2139, 2140-2141, 2142-2143, 2144-2145, 2146-2147, 2148-2149, 2150-2151, 2152-2153, 2154-2155, 2156-2157, 2158-2159, 2160-2161, 2162-2163, 2164-2165, 2166-2167, 2168-2169, 2170-2171, 2172-2173, 2174-2175, 2176-2177, 2178-2179, 2180-2181, 2182-2183, 2184-2185, 2186-2187, 2188-2189, 2190-2191, 2192-2193, 2194-2195, 2196-2197, 2198-2199, 2200-2201, 2202-2203, 2204-2205, 2206-2207, 2208-2209, 2210-2211, 2212-2213, 2214-2215, 2216-2217, 2218-2219, 2220-2221, 2222-2223, 2224-2225, 2226-2227, 2228-2229, 2230-2231, 2232-2233, 2234-2235, 2236-2237, 2238-2239, 2240-2241, 2242-2243, 2244-2245, 2246-2247, 2248-2249, 2250-2251, 2252-2253, 2254-2255, 2256-2257, 2258-2259, 2260-2261, 2262-2263, 2264-2265, 2266-2267, 2268-2269, 2270-2271, 2272-2273, 2274-2275, 2276-2277, 2278-2279, 2280-2281, 2282-2283, 2284-2285, 2286-2287, 2288-2289, 2290-2291, 2292-2293, 2294-2295, 2296-2297, 2298-2299, 2300-2301, 2302-2303, 2304-2305, 2306-2307, 2308-2309, 2310-2311, 2312-2313, 2314-2315, 2316-2317, 2318-2319, 2320-2321, 2322-2323, 2324-2325, 2326-2327, 2328-2329, 2330-2331, 2332-2333, 2334-2335, 2336-2337, 2338-2339, 2340-2341, 2342-2343, 2344-2345, 2346-2347, 2348-2349, 2350-2351, 2352-2353, 2354-2355, 2356-2357, 2358-2359, 2360-2361, 2362-2363, 2364-2365, 2366-2367, 2368-2369, 2370-2371, 2372-2373, 2374-2375, 2376-2377, 2378-2379, 2380-2381, 2382-2383, 2384-2385, 2386-2387, 2388-2389, 2390-2391, 2392-2393, 2394-2395, 2396-2397, 2398-2399, 2400-2401, 2402-2403, 2404-2405, 2406-2407, 2408-2409, 2410-2411, 2412-2413, 2414-2415, 2416-2417, 2418-2419, 2420-2421, 2422-2423, 2424-2425, 2426-2427, 2428-2429, 2430-2431, 2432-2433, 2434-2435, 2436-2437, 2438-2439, 2440-2441, 2442-2443, 2444-2445, 2446-2447, 2448-2449, 2450-2451, 2452-2453, 2454-2455, 2456-2457, 2458-2459, 2460-2461, 2462-2463, 2464-2465, 2466-2467, 2468-2469, 2470-2471, 2472-2473, 2474-2475, 2476-2477, 2478-2479, 2480-2481, 2482-2483, 2484-2485, 2486-2487, 2488-2489, 2490-2491, 2492-2493, 2494-2495, 2496-2497, 2498-2499, 2500-2501, 2502-2503, 2504-2505, 2506-2507, 2508-2509, 2510-2511, 2512-2513, 2514-2515, 2516-2517, 2518-2519, 2520-2521, 2522-2523, 2524-2525, 2526-2527, 2528-2529, 2530-2531, 2532-2533, 2534-2535, 2536-2537, 2538-2539, 2540-2541, 2542-2543, 2544-2545, 2546-2547, 2548-2549, 2550-2551, 2552-2553, 2554-2555, 2556-2557, 2558-2559, 2560-2561, 2562-2563, 2564-2565, 2566-2567, 2568-2569, 2570-2571, 2572-2573, 2574-2575, 2576-2577, 2578-2579, 2580-2581, 2582-2583, 2584-2585, 2586-2587, 2588-2589, 2590-2591, 2592-2593, 2594-2595, 2596-2597, 2598-2599, 2600-2601, 2602-2603, 2604-2605, 2606-2607, 2608-2609, 2610-2611, 2612-2613, 2614-2615, 2616-2617, 2618-2619, 2620-2621, 2622-2623, 2624-2625, 2626-2627, 2628-2629, 2630-2631, 2632-2633, 2634-2635, 2636-2637, 2638-2639, 2640-2641, 2642-2643, 2644-2645, 2646-2647, 2648-2649, 2650-2651, 2652-2653, 2654-2655, 2656-2657, 2658-2659, 2660-2661, 2662-2663, 2664-2665, 2666-2667, 2668-2669, 2670-2671, 2672-2673, 2674-2675, 2676-2677, 2678-2679, 2680-2681, 2682-2683, 2684-2685, 2686-2687, 2688-2689, 2690-2691, 2692-2693, 2694-2695, 2696-2697, 2698-2699, 2700-2701, 2702-2703, 27

the carrier from the shipper, as far as ascertained by reasonable
packing in apparent good order and condition unless otherwise stated
number or quantity of containers or other packages or units
responsible entered "Carrier's Receipt"

Albright D. K.

Frank Kuzela
FRANK KUZELA

Source: for the Centre, A. C. Møller; for the Maersk AIS trading as Maersk Sealand.

MAERSK AGENCY S.R.O.

As a part of the Career

1366/271
Fax from : +420 257182330

07/09/04 14:54 Pg: 1

09/07/04 15:05:39

+420 257182330->

0677994314 Maersk Agency sro

Page 001

THE A.P. MOLLER GROUP



MAERSK SEALAND

TO : FRANK KUZELA
FROM: Maersk Sealand Czech Republic/RAD //CZSORD

Page 1 of 2

REFN: CZS12815 INIT: RAD 2004.09.07 14:59 CET

TRANS: RT ORDER: PRHL12276

Dear Mr. Kuzela,
bellow please see booking confirmation for 2x40'HC to Miami port
with all details:

ACCEPTANCE LETTER

ZAKAZNIK: POTVRZENI KNIHOVANI A PRO VASI INFORMACI.

** NA VESKERE ZALEZITOSTI SPOJENE S TIMTO KNIHOVANIM SE VZTAHUJI
PODMINKY A USTANOVENI MAERSK SEALAND BILL OF LADING, ROVNEZ TAK
MISTNI POPLATKY A PRAVIDLA O ZASTISTENI KONTEJNERU PLOMBOU
DLE WWW.MAERSKSEALAND.COM/CZECHREPUBLIC/ **

Booking no. PRHL12276 2 X 40 DRY HI

Booking Party FRANK KUZELA
Cargo PERSONAL EFFECTS

VIP:

Container	Loading	Tare	Cargo	Haulier	HC Pickup
40 DRY 9'6"	040909-0830	0	15000		-
40 DRY 9'6"	040910-0830	0	15000		-

Other Details:

Requirements HIGH

Route Details	State Mode	Vessel	Voy	ETD
CZZLR ZLIN		TRK		
CZYQTRT UHERSKY BROD TE		RP		
CZMZK01 MELNIK BARGE TE		RS		
NLROT01 APM TERMINALS R ZH		MAERSK	0413	040925
USMIATM MIAMI TERMINAL FL				

Address details:

Cargo load FRANK KUZELA
Frank Kuzela
Filmova 174
Filmove ateliery as, budova 17
760 01 Zlin Loc Bay

Date and Time As specified above

Cust loading remarks
kontakt: 724178586

✓ ETD Rotterdam 24.9.

Maersk Agency sro

Na Bendle 21 150 00 Praha 5, Czech Republic
Radek Duda - Tel: +420 257182327 - Fax: +420 257182330
Email: czsord@maersk.com - Homepage: www.maersksealand.com

Fax from : +420 257182330

07/09/04 14:54 Pg: 2

09/07/04 15:06:22

+420 257182330->

0677994314 Maersk Agency sro Page 002



MAERSK SEALAND

Page 2 of 2

ETA Miami 5.10.

Best regards
Radek Duda

PARAGON Z 2897624

zjednodušený daňový doklad č.

Dodavatel: STAR ZLIN 214, ŠTÍPA, VELKOVSKÁ 500, PSČ 763 11 TELEFON: 577 922 411-15 DIČ: 255 13 134 DIČ: 203 255 13 134		Odběratel: Ren KUZELA PROVODOU DIČ:		
Název zboží (druh, rozměr)	počet	cena/kš	% DPH	cena Kč s DPH
1 + 12.10.01			9%	1.000,-
Datum usk. zdan. plnění: 10.9.2014 Star Zlin 214, ŠTÍPA, VELKOVSKÁ 500, PSČ 763 11 TELEFON: 577 922 411-15 DIČ: 255 13 134 DIČ: 203 255 13 134 Razítko a podpis	% DPH 9%	Celkem s DPH 1.000,-	X úhrada: 1.000,- DPH Kč bez DPH Kč	

Star Zlin, s.r.o. IČ: 255 13 134 DIČ: 203 255 13 134
 TEL: 577 922 411-15 FAX: 577 922 411-16
 E-MAIL: STAR@STARZLIN.CZ

AMEA 859778-7

ML/CZ 0012385

1st container

CPM 555 881-7

ML/CZ 0012384

2nd container

1366/211 ← number on 1st container on police seal

FAX 973 514 1362

FRANK & ANNA KUZELA.
P.O. Box 110896

To Maersk Inc.
Claims Department
Giralda Farms
Madison Avenue
P.O. Box 880

Palm Bay
Florida 32911-0896

October 26 2005

Madison N.J. 07940-0880.

Our Telephone # 321 728 1372

Attention To: - Mr. Jason Pasterick

Dear Sir:

Enclosed you will find a list of National Geographic Society Magazines that got destroyed due to water damage in a shipping container # AMFU8597787

We need to replace these magazine book with their covers.

I contacted the company National Geographic to see if they are still available and they told us "Yes". and as to how much they are.

from year to year — The shipping container from Maersk was a 40' # AMFU8597787 High 40'.

It came from Europe from the Czech Republic to Miami Florida U.S.A. I am sending you by fax the copy of the Export Invoice plus the copy from the company Sea Nighthawk Enterprises Inc. they are the company that trucked it from Miami

2)

National Geographic told us how much each book would cost including shipping and handling charges. The prices were given to you on the list we mailed to you. The person we had spoken to at National Geographic was a lady named CONSUELO. She in turn quoted to us what each year book would cost including shipping and handling charges. You have this list with you... also as to how much the sleeves for the books cost. The total is \$ 4,147.80 US\$

You can contact Consuelo at this phone number 1-800-777-2800 for the book prices and for the sleeves 1-888-647-6733. They are two separate departments.

We have a collection of these books for years and the price of the earlier editions increases in value as per the itemized list we sent you earlier by the National Geographic Society.

The total quote was given to you, with including the other Czech language books which also got water damage on them. Those are old valuable books which we know we cannot replace.

All these books from the National Geographic Society are a valuable collection including the Czech books —

If in anyway you are able to replace all these National Geographic Society books for us in the mint order they were for only U.S. dollars of One thousand... please do so. — you can contact the National Geographic Society:

Looking forward from you a speedy reply — You can fax us to "Staples" the fax number is ... 321 726-0952

Our address is P.O. Box 110896

Palm Bay

Florida 32911-0896.

just like on the head of this letter to you.

Sincerely,

Frank and Anna KUZELA.

FAX # 973-514-5165

P.O. Box 110896

Palm Bay
Florida 32911-0896

January 2, 2006

Dear Mr. Yu:

Enclosed we are sending you a copy of your letter to us, dated... December 14 2005.

In reply to your letter dated December 14 2005 there is absolutely NO WAY we could in anyway possible accept the amount you offered us of U.S. Dollars \$1,000.00 (one thousand) for the replacement of all those valuable collection of those listed National Geographic Society Magazines books which we had sent to you. These books got water damage due to a large hole which occurred on the roof of the shipping container, during shipment from Europe to the United States.

Maersk Sealand was notified straight away about the large hole on the roof of the container as well as photos were taken by the "Pier 1" Company driver who brought the container to the storage unit over here at Palm Bay.

to the storage unit over here to Palm Bay at Brevard County
On October 28 2004. The Driver from Night Hawk
took photos of the 2 boxes of the magazine books with
the covers and also the wide hole on the roof of the
Shipping container # AMFU 8597787.

— I had written a letter to you but never got any
answer from you. — I also checked carefully all my
mail because I was away for a few months. I
got back the other day before the hurricane a few
days ago. — I hope you will help me on this claim.
The magazines with shipping and handling plus the
slip covers are separate prices — National Geographic
told me by phone and they also told me that these
books are still available —

We hope we can get an answer from you
by fax this time — Last time I mailed you my
letter. —

We thank you — waiting to
hear from you soon —

Sincerely,

Frank and Anna KUZELA

National Geographic Society Magazine Books,
has got water damage with their covers.

Year

1951 → July to December = 20.00 each = \$120.00.

1952 → January to December = 20.00 each = 240.00.

1954 → " " " = 20.00 each = 240.00

1955 → " " " = 20.00 each = 240.00.

= \$840.00

1956 → January to December = 15.00 each = 180.00

1957 → " " " = 15.00 each = 180.00

1958 → " " " = 15.00 each = 180.00

1959 → " " " = 15.00 each = 180.00

1960 → " " " = 15.00 each = 180.00

1961 → " " " = 15.00 each = 180.00.

= \$1080.00

1962 → July to December = 15.00 each = 90.00

1963 → " " " = 15.00 each = 90.00

= \$180.00

1964 → January to December = 15.00 each = 180.00

1965 → " " " = 15.00 each = 180.00

1966 → " " " = 15.00 each = 180.00

= \$540.00

Continue

1971 → January to December = 10.00 each = 120.00
 1974 → " " " = 10.00 each = 120.00
 1975 → " " " = 10.00 each = 120.00
 1976 → " " " = 10.00 each = 120.00
 1977 → " " " = 10.00 each = 120.00
 1978 → " " " = 10.00 each = 120.00
 1979 → " " " = 10.00 each = 120.00
 1980 → " " " = 10.00 each = 120.00.
= \$ 960.00

That is ³840.00.
²1080.00
 180.00
 540.00.
 + 960.00

\$3600.00 TOTAL for ~~each~~ books

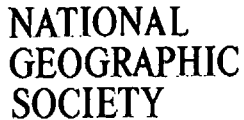
Pls The total for the slip covers a about \$447.80.

This is what the lady told me over the telephone

Also there are some Czech language book that got water damage that belongs to us which we had packed with the National Geographic books — worth \$100.00

Total is 3600.00
 447.80
 + 100.00
= \$4147.80 TOTAL.

Thank You!



December 23, 2004

Frank Kuzela
Po Box 110896
Palm Bay FL 32911-0896

Dear Frank Kuzela:

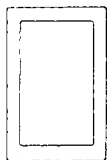
Slipcases for National Geographic are available. Two embossed, elegantly bound slipcases which hold issues for January through June and July through December, are provided for each year. We currently have slipcases available for 1950 through the current calendar year. You may purchase the 1950-2003 slipcases separately. Each set of slipcases is \$14.95 plus shipping and handling with any applicable sales tax.

We also have Mapcases available you can purchase for \$14.95 plus \$4.95 shipping and handling with any applicable sales tax.

We hope this information is helpful, and look forward to serving you in the future.

Jessica Taylor
Customer Service

104357091223001/II50



**NATIONAL
GEOGRAPHIC
SOCIETY**

**P.O. Box 63001
Tampa, FL 33663-3001**

January 21, 2005

Frank J. Kuzela
P.O. Box 110896
Palm Bay, FL 32911-0896

Dear Frank J. Kuzela:

Thank you for contacting NATIONAL GEOGRAPHIC Society.

Below is a list of available issues and their prices. Prices quoted are in U.S. funds and do not include tax where applicable. The cost includes shipping and handling. The cost of issues will range as follows:

\$10.00 each 1971 through 1985
\$15.00 each 1956 through 1970
\$20.00 each 1941 through 1955

Please keep in mind that our inventory changes daily and some issues may no longer be available. Delivery time is 4 to 6 weeks by 2nd class mail. We offer Federal Express shipping for an additional charge.

We accept payment by VISA, MasterCard, Discover Card, Optima, and American Express. We also accept a check or money order in U.S. funds, which you may mail to the address at the top of this letter. If you would like to order or inquire on specific dates, please call the single copy department at 1-800-777-2800 or 1-813-979-6845 or you may fax your order to 1-813-354-3467. Our email address is ngs.single@customersvc.com.

We appreciate this opportunity to be of service.

Sincerely,

A. Garcia
Customer Service

Attachments: 4

National Geographic Society

FAX 813 354 3467

January 13 2005

P.O. Box 60001

Tampa Fla. 33660

from FRANK J. KUZELA.
P.O. Box 110896
PALM BAY
FL 32911-0896

Dear Consuelo,

I spoke to you yesterday by phone —

Here is the photo copy of the letter I sent to

National Geographic Society dated November 6 2004
but never got any response.

Please do as it says in my letter. I'll
appreciate it. Send to P.O. Box 110896 address.
Palm Bay FL. 32911-0896.

I need a letter stating how much
each magazine costs including shipping
and handling charges, for the shipping company
"Maersk Sealand" at Miami Florida.

We want to replace the magazines
with their covers that were damaged.

Thank you for your attention.

Frank J. Kuzel and Anna Kuzela

FRANK KUZELA and. ANNA KUZELA.